



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 33515052

Date: JAN. 15, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (Extraordinary Ability)

The Petitioner is an entrepreneur specializing in business and immigration investment. She seeks first preference immigrant classification as an individual of extraordinary ability. *See* Immigration and Nationality Act (the Act) section 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A). This first preference classification makes immigrant visas available to those who can demonstrate their extraordinary ability through sustained national or international acclaim and whose achievements have been recognized in their field through extensive documentation.

The Director of the Nebraska Service Center denied the petition, concluding that the record did not establish that the Petitioner qualifies as an individual of extraordinary ability either as the recipient of a one-time achievement that is a major, internationally recognized award, or as someone who initially satisfied at least three of the ten required regulatory criteria listed at 8 C.F.R. § 204.5(h)(3)(i) – (x). The Director determined that the Petitioner did not satisfy any of the six claimed criteria. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal because the Petitioner did not establish that she meets the criteria at 8 C.F.R. § 204.5(h)(3)(i), (iii), (v), and (vi).

The Petitioner has maintained and continues to do so on appeal that she meets the criteria at 8 C.F.R. § 204.5(h)(3)(ii) and (viii), which relate to membership in associations and performance in a leading or critical role, respectively. However, as discussed below, the Petitioner would not establish that she met three out of ten criteria even if she established that she met these two criteria. As such, we need not address either criterion, nor do we need to provide the type of final merits determination referenced in *Kazarian*, 596 F.3d at 1119-20. Accordingly, we will reserve these issues. *See INS v. Bagamasbad*, 429 U.S. 24, 25-26 (1976) (stating that, like courts, federal agencies are not generally required to make findings and decisions unnecessary to the results they reach).

I. LAW

To qualify as a noncitizen with extraordinary ability, a petitioner must demonstrate that:

- They have “extraordinary ability in the sciences, arts, education, business, or athletics;”
- They seek to continue work in their field of expertise in the United States; and
- Their work would substantially benefit the country.

Section 203(b)(1)(A)(i)-(iii) of the Act.

The term “extraordinary ability” refers only to those individuals in “that small percentage who have risen to the very top of the field of endeavor.” 8 C.F.R. § 204.5(h)(2). The implementing regulation at 8 C.F.R. § 204.5(h)(3) sets forth a multi-part analysis. First, a petitioner can demonstrate international recognition of a beneficiary’s achievements in the field through a one-time achievement (that is, a major, internationally recognized award). If the petitioner does not submit this evidence, then it must provide sufficient qualifying documentation demonstrating that the beneficiary meets at least three of the ten criteria listed at 8 C.F.R. § 204.5(h)(3)(i) – (x) (including items such as awards, published material in certain media, and scholarly articles).

Where a petitioner demonstrates that the beneficiary meets these initial evidence requirements, we then consider the totality of the material provided in a final merits determination and assess whether the record shows sustained national or international acclaim and demonstrates that the individual is among the small percentage at the very top of the field of endeavor. *See Kazarian v. USCIS*, 596 F.3d 1115 (9th Cir. 2010) (discussing a two-part review where the documentation is first counted and then, if fulfilling the required number of criteria, considered in the context of a final merits determination); *see also Visinscaia v. Beers*, 4 F. Supp. 3d 126, 131-32 (D.D.C. 2013); *Rijal v. USCIS*, 772 F. Supp. 2d 1339 (W.D. Wash. 2011).

II. ANALYSIS

The Petitioner is an entrepreneur who is the founder and general manager of a U.S.-based investment consulting business. Because the Petitioner does not claim or submit evidence to show that she received a major, internationally recognized award, she must provide evidence showing that she satisfies at least three of the alternate regulatory criteria listed at 8 C.F.R. § 204.5(h)(3)(i) – (x).

The Petitioner claims that she meets the six criteria that are summarized below:

- (i), Recipient of lesser nationally or internationally recognized prizes or awards;
- (ii), Membership in associations that require outstanding achievements;
- (iii), Published material about the Petitioner;
- (v), Original contributions of major significance;
- (vi), Authorship of scholarly articles; and
- (viii), Performance in a leading or critical role for distinguished organizations or establishments.

However, despite listing these six criteria as the basis for eligibility, on appeal, the Petitioner does not discuss or explain how the Director erred in concluding that she did not meet the requirements of the criterion listed at 8 C.F.R. § 204.5(h)(3)(i). Because the Petitioner has not otherwise discussed this criterion or explained how the Director erred with regard thereto, she has effectively waived her claim to the criterion and it need not be discussed further. *See, e.g., Matter of O-R-E-*, 28 I&N Dec. 330, 336 n.5 (BIA 2021) (waiving an argument that was mentioned, but not developed); *see also Francisco Diego v. Garland*, 2024 WL 4750502, *1 (9th Cir. November 12, 2024).

In light of the above, this decision will focus on the three remaining criteria that are listed at 8 C.F.R. § 204.5(h)(3)(iii), (v), and (vi).

The first criterion to be discussed, 8 C.F.R. § 204.5(h)(3)(iii), requires evidence of published material, which “shall include the title, date, and author of the material,” about the Petitioner and her work and was published in a professional or major trade publication or other major media.

In the denial, the Director determined that several of the Petitioner’s submissions included material that did not meet the regulatory provisions, such as the articles from *Shenzhen Special Zone Daily* and *haiwai.net.cn*, which the Director found were not about the Petitioner despite having mentioned her, and articles found on NetEase, *ifeng.com*, *sohu.com*, and *qq.com*, which were deemed deficient because of issues with their respective URLs and the lack of a cited author. The Director also determined that multiple articles were merely paid advertisements for the Petitioner’s business and identified two articles that were published after this petition’s filing date and thus do not establish eligibility at the time of filing.

On appeal, while the Petitioner addresses the Director’s concerns regarding URL issues, she does not adequately address the greater deficiency concerning the lack of cited authors for several of the submitted articles. In fact, the Petitioner incorrectly asserts that “there is no regulation or policy that requires a citation of the author of the article” and further states that the Director “deviates from the controlling regulation” by disregarding articles that do not include an author. However, as previously stated, the criterion at 8 C.F.R. § 204.5(h)(3)(iii) specifies that evidence of published material “shall include the title, date, and author of the material.”

The Petitioner also cites no policy or regulation to support her argument that an article’s publication date can be disregarded so long as the content referenced therein pertains to facts or events that predate the petition’s date of filing. In fact, the Petitioner’s argument is incongruent with 8 C.F.R. § 103.2(b)(1), which states that a petitioner “must establish eligibility for the requested benefit at the time of filing the benefit request,” and with 8 C.F.R. § 103.2(b)(12), which states, “A benefit request shall be denied where evidence submitted in response to a request for evidence does not establish filing eligibility at the time the benefit request was filed.” And although the Petitioner broadly states that the evidence she provided was sufficient, she does not specifically discuss any of the articles she submitted to support this assertion. Given the deficiencies discussed herein, the record does not show that the Petitioner satisfied the criterion at 8 C.F.R. § 204.5(h)(3)(iii).

Next, we will discuss the criterion at 8 C.F.R. § 204.5(h)(3)(v), which requires evidence of the Petitioner’s original contributions of major significance in the field. To meet this criterion, not only must the Petitioner establish that she made original contributions, but also that the contributions have

been of major significance in her field, rather than having major significance to a project or organization. See *Amin v. Mayorkas*, 24 F.4th 383, 394 (5th Cir. 2022) (citing *Visinscaia v. Beers*, 4 F. Supp. 3d 126, 134 (D.D.C. 2013)). The regulatory phrase “major significance” is not superfluous and, thus, it has some meaning. *Nielsen v. Preap*, 139 S. Ct. 954, 969 (2019) (finding that every word and every provision in a statute is to be given effect and none should needlessly be given an interpretation that causes it to duplicate another provision or to have no consequence). Further, the Petitioner's contributions must have already been realized rather than being potential, future improvements. Contributions of major significance connotes that the Petitioner's work has significantly impacted the field. The Petitioner must submit evidence satisfying all these elements to meet the plain language requirements of this criterion.

In denying the petition, the Director noted that the Petitioner provided reference letters from individuals who discussed the Petitioner's work and accomplishments. However, the Director pointed out that the Petitioner did not provide objective evidence to support assertions made in several of the letters. The Director also questioned the probative value of three letters based on their similarities in structure and content.

On appeal, the Petitioner primarily discusses her previously submitted professional plan, highlighting and restating portions of the plan where she discussed her offering of “the one-stop-shop service of combining family office services with immigration packages in China.” The Petitioner also broadly references her previously submitted supporting letters, claiming that they “attested to [her] contributions to business investment, consultation, and management industry.” However, the Petitioner does not reference specifically or discuss the contents of any previously submitted letters to explain how they support her claims concerning this criterion; nor does the Petitioner acknowledge or address the Director's concerns about the lack of objective evidence corroborating claims made in the letters. While several reference letters highlight the number and value of the Petitioner's past projects and the number of jobs they claim the Petitioner helped to create with her business strategy, the Petitioner does not point to objective evidence in the record that supports these claims. And while the Petitioner's business plan contains some of the same information as in the support letters, the plan itself is another iteration of the Petitioner's claims which must be corroborated through the submission of supporting evidence. See *Matter of Chawathe*, 25 I&N Dec. 369, 376 (AAO 2010) (stating that assertions must be supported by relevant, probative, and credible evidence).

Further, the Petitioner has not provided sufficient evidence that her contribution was of major significance in her field. Although the originally submitted support letters from [REDACTED] attributed financial and job creation figures to the Petitioner's business strategy, the Petitioner did not provide evidence that those figures, even if corroborated by objective evidence, had an impact that can be deemed as having had major significance in her field.

In response to the Director's request for evidence (RFE), the Petitioner provided four additional letters to satisfy this criterion. However, three of those letters – namely letters from [REDACTED] – discussed ways in which the Petitioner used her “one-stop-shop” strategy to help her clients, while a fourth letter, authored by [REDACTED] offered the author's personal account of benefits gained from using the Petitioner's investment consultation services. In sum, while the support letters indicate that the Petitioner's contributions – most notably the “one-stop-shop” business strategy – benefited individuals and businesses who used her services, none of the letters demonstrate that the

contributions had major significance in the Petitioner's field. Given the deficiencies discussed herein, we cannot conclude that the Petitioner satisfied the requirements of 8 C.F.R. § 204.5(h)(3)(v).

Lastly, we will address the criterion at 8 C.F.R. § 204.5(h)(3)(vi), which requires evidence of the Petitioner's "authorship of scholarly articles in the field, in professional or major trade publications or other major media." In support of this criterion, the Petitioner provided evidence of her published research in the 2021 publication of *Science and Life*.

To determine whether a petitioner meets this criterion, USCIS first determines whether the person has authored scholarly articles in the field. As defined in the academic arena, a scholarly article reports on original research, experimentation, or philosophical discourse. It is written by a researcher or expert in the field who is often affiliated with a college, university, or research institution. Scholarly articles are also generally peer reviewed by other experts in the field of specialization. In general, it should have footnotes, endnotes, or a bibliography, and may include graphs, charts, videos, or pictures as illustrations of the concepts expressed in the article. *See generally 6 USCIS Policy Manual* F.2(B)(1), <https://www.uscis.gov/policymanual>. For other fields, a scholarly article should be written for learned persons in that field. Learned persons include all persons having profound knowledge of a field. *Id.*

Next, USCIS determines whether the publication qualifies as a professional publication, major trade publication, or major media publication. In evaluating whether a submitted publication is a professional publication or major media, relevant factors include the intended audience (for professional journals) and the circulation or readership relative to other media in the field (for major media). *See generally 6 USCIS Policy Manual, supra*, at F.2(B)(1).

The Director determined that the Petitioner's article, while possessing some traits of a scholarly publication, cannot be deemed scholarly because it is not based on original research, experimentation, or philosophical discourse. The Director also determined that the Petitioner did not establish that her article was published in a professional or major trade publications or other major media, pointing out that the Petitioner did not provide evidence of the publication's circulation and comparative circulation data of major publications in the field.

On appeal, the Petitioner argues that *Science and Life* is a professional journal whose intended audience is "professionals within the relevant fields," thereby asserting that circulation and readership evidence is not relevant in this matter. We disagree. Despite the Petitioner's assertions that *Science and Life* is a professional journal, we find that the publication is not intended "for learned persons *in that field*." *See id.* (emphasis added). In this instance, the Petitioner's field is that of business and entrepreneurship. However, the articles in *Science and Life* cover a wide range of topics, which include not only the Petitioner's field, but also but also a variety of others. For instance, the table of contents in the issue containing the Petitioner's article also lists an article titled "Analysis of Exploratory Subject Guidance: Taking the Influence of Alcohol on Human Coordination Ability as an Example," while the title of another article – "Innovative Research on the Intelligent PE Teaching in Universities under the Background of 'Internet +'" – pertains to a different subject matter altogether. The same publication contains articles about topics that include ideological and political practice and information technology; and one article even discusses the enhancement of attraction of university libraries in the era of the internet. Given the breadth of the subject matter covered in *Science and Life*, we cannot conclude that this publication was intended for learned persons in the Petitioner's field.

The Petitioner therefore has not demonstrated that the evidence she submitted is sufficient to meet the requirements of the criterion at 8 C.F.R. § 204.5(h)(3)(vi).

III. CONCLUSION

The Petitioner has not shown that she met either a one-time award, or three of ten initial criteria.¹ The Petitioner seeks a highly restrictive visa classification, intended for individuals already at the top of their respective fields. USCIS has long held that even athletes performing at the major league level do not automatically meet the “extraordinary ability” standard. *Matter of Price*, 20 I&N Dec. 953, 954 (Assoc. Comm’r 1994). Here, the Petitioner has not shown that the significance of her work is indicative of the required sustained national or international acclaim or that it is consistent with a “career of acclaimed work in the field” as contemplated by Congress. H.R. Rep. No. 101-723, 59 (Sept. 19, 1990); see also section 203(b)(1)(A) of the Act. Moreover, the record does not otherwise demonstrate that the Petitioner has garnered national or international acclaim in the field, and that she is one of the small percentage who have risen to the very top of the field of endeavor. See section 203(b)(1)(A) of the Act and 8 C.F.R. § 204.5(h)(2).

ORDER: The appeal is dismissed.

¹ As previously noted, the Petitioner also claimed that she meets the criteria at 8 C.F.R. § 204.5(h)(3)(ii) and (viii), which relate to membership in an association and leading or critical role, respectively. However, because this appeal is dispositive on the basis of other criteria which we identified and discussed, we need not determine whether the Petitioner meets the requirements of the remaining criteria at 8 C.F.R. § 204.5(h)(3)(ii) and (viii), and we will reserve these issues. See *INS v. Bagamasbad*, 429 U.S. at 25-26.